

FORM F23
(RULES 9-4 (5), 9-7 (5) AND 14-7 (32) AND (36))

Court File No.: _____

Court Registry: _____

In the Supreme Court of British Columbia

Claimant: _____

Respondent: _____

SUBPOENA TO WITNESS

[Rule 21-1 of the Supreme Court Family Rules applies to all forms.]

To:

[name and address]

TAKE NOTICE that you are required to attend to testify as a witness at the place, date and time set out below.
You are also required to bring with you all documents in your possession or control relating to the matters in
question in this family law case: *[and if applicable, the following physical objects]*

Place: _____

Date: _____

Time: _____

Date: _____

Signature of ☐ party serving subpoena

☐ lawyer for party(ies) serving subpoena

[type or print name]

Rule 14-7 (38) of the Supreme Court Family Rules states:

(38) On proof

- (a) of the service of a subpoena on a witness who fails to attend or to remain in attendance in accordance with the requirements of the subpoena,
- (b) that proper witness fees have been paid or tendered to that witness, and
- (c) that the presence of that witness is material to the ends of justice,

the court, by its warrant in Form F50 directed to a sheriff or other officer of the court or to a peace officer, may cause that witness to be apprehended and promptly brought before the court and to be detained in custody or released on terms the court may order, and the court may order that witness to pay the costs arising from the witness's failure to attend or to remain in attendance.